GUIDELINES FOR THE OPERATIONALISATION OF ADVANCE CARGO DECLARATION REGULATION

ISSUED BY

NIGERIAN UPSTREAM PETROLEUM REGULATORY COMMISSION

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1. INTRODUCTION

1.1 Purpose & Scope

The purpose of this document is to provide general rules for the implementation of the Advance Cargo regime for Crude oil cargo declaration and export documentation of the **Nigerian Upstream Petroleum Advance Cargo Declaration Regulation, 2024.**

These Guidelines are made pursuant to **Section 10(f) of the Petroleum Industry Act 2021 which gives the Commission powers to issue guidelines in accordance with the provisions of the Act and any regulation in respect of upstream petroleum operations.**

1.2 Application

These Guidelines shall apply to licences and leases granted or preserved by the Petroleum Industry Act (PIA) and to all crude oil, natural gas, natural gas liquid and petroleum products and exports from all terminals and export points in Nigeria.

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2. DEFINITION OF TERMS

2.1 The definitions in Section 318 of the Act shall apply to these Guidelines in addition to the definition in paragraph 2.2 of these Guidelines.

2.2 Definition:

(a) ***Documentary Instruction***" means an electronic form for advance cargo declaration made available by the Commission to exporters on the advance cargo declaration portal;

(b) "***Advance cargo declaration portal***" or **"Portal"** means an electronic database created and maintained by the Commission for the purpose of these Regulations;

(c) "***Cargo***" means petroleum intended to be exported or shipped from Nigeria;

(d) "***Certificate of Quantity and Quality***" means the certificate issued by the Commission for export pursuant to extant Procedure Guides;

(e) "***Commission***" means the Nigerian Upstream Petroleum Regulatory Commission;

(f) "***Crude oil***" shall have the meaning given to the term in the Act;

(g) ***"Condensate***" shall have the meaning given to the term in the Act;

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(h) "***Export Permit***" means the permit issued by the Federal Ministry of Industries, Trade and Investment for the export of crude oil, liquefied natural gas, liquefied petroleum gas, condensates and refined products

(i) "***Lessee***" shall have the meaning given to the term in the Act;

(j) "***Licensee***" shall have the meaning given to the term in the Act;

(k) "***Natural Gas Liquids***" means Natural Gas Liquids produced from integrated gas plants as defined by the act

(l) "***Petroleum***" shall have the meaning given to it in the Act;

(m) "***Petroleum products***" means petroleum products or gas to liquids products produced from integrated upstream facilities as defined by the act.

(n) ***"Procedure Guide"*** means the existing *Procedure Guide for the Determination of the Quantity and Quality of Petroleum and Petroleum Products in Nigeria*

(o) "***Regulations***" means the Nigerian Upstream Advance Cargo Declaration Regulations issued by the Commission; and

(p) "***Vessel"*** means any form of vessel employed to export Cargo from Nigeria.

(q) "***Vessel Clearance***" means authorisation granted by the Commission for a vessel to export crude oil, condensate, natural gas liquids and/or petroleum products.

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3. PROCEDURE FOR OBTANING EXPORT PERMIT, VESSEL CLEARANCE AND UNIQUE IDENTIFICATION NUMBER

3.1 A licencee, lessee or exporter of crude oil, condensate, natural gas liquid or petroleum products from any terminal in Nigeria shall first obtain an export permit, vessel clearance and Unique Identification Number in the following manner: -

(a) By applying to the Nigerian Upstream Petroleum Regulatory Commission (Commission) online Crude Oil Export Permit (COTEX) platform with the documents specified in Section 5.3 of the Procedure Guide for the Determination of the Quantity and Quality of Petroleum and Petroleum Products in Nigeria.

(b) An export permit holder shall apply for vessel clearance for the export of crude oil under the permit by applying on the Commission's Advance Cargo Declaration Portal by way of Documentary Instruction (DI) in accordance with the Advance Cargo Regulations and subject to the crude oil measurement and accounting procedure of the Commission at the terminal.

(c) Upon receipt of an application for vessel clearance, the Commission shall issue a clearance notification to the terminal operator after -

i. Validation of the identity of the export permit holder for the crude stream to be exported; and

ii. Verification of the volume to be exported to ensure that it is within the volume approved in the export permit by the Commission.

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(d) The vessel clearance notification shall be embossed with a Unique Identification Number automatically generated by the Portal at the time of issuing the notification.

(e) A copy of the clearance notification to the terminal operator shall be forwarded to the export permit holder via the Portal.

(f) Following the conclusion of loading of any export cargo at a terminal, the Commission shall issue a certificate of quantity and quality using the export measurement data from the loading activities.

(g) The Unique Identification Number on the vessel clearance notification shall be embossed on the certificate of quantity and quality and all other shipping documents relating to the export such as-

i) Bill of Lading

ii) Certificate of Origin;

iii) Tanker/cargo manifest;

iv) Vessel documentation; and

v) any other relevant document related to the export

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(h) The Commission shall upload a copy of the certificate of quantity and quality, and any other documents related to the export on the Portal within 24 hours following the completion of the cargo loading process.

4. GENERAL PROVISIONS

4.1 Refusal of Vessel Clearance Application

4.1.1 The Commission may refuse to issue a vessel clearance notification based on any of the following reasons:

(a) Incomplete information

(b) Inadequate documentation

(c) False information

4.1.2 The holder of an export permit may re-submit a vessel application that the Commission refused to issue approval based on any of the fore-going reasons except for submission of false information, without the payment of additional processing fee and the payment of any penalty for late application.

4.2 Revision of Vessel Clearance Application

4.2.1 Revision of vessel clearance application may occur where the export permit holder following the submission of an application for vessel clearance on the Portal elects to change or revise the information or volume of export in the original application.

4.2.2 Revision shall be subject to the payment of a revision of application fee as provided in the Fees Provisions of these Guidelines.

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4.2.3 Where a Unique Identification Number is issued prior to the revision of cargo clearance application pursuant to paragraph 4.2.1 of this Guideline, the initial/same UIN shall be used for the export documentation.

5. THE ADVANCE CARGO ONLINE PORTAL

5.1 The Commission Advance Cargo Portal shall be:

(a) An online real time application system deployed by the Commission's and developed using modern technology stacks; and

(b) The Portal shall provide well-documented and robust Application Programming Interfaces (APIs) to enable seamless integration with existing Commission portals and relevant government export systems.

6. PAYMENT FOR VESSEL CLEARANCE

6.1 All payments associated with vessel clearance and Unique Identification Number procedure in these guidelines shall be made by the licencee, lessee or exporter of crude oil, condensate, Natural Gas Liquids and Petroleum Products from any terminal/export points in Nigeria and shall be made to an account designated by the Commission for that purpose.

S/N	APPLICATION	UNIT	AMOUNT
1.	Vessel Clearance application	Per Barrel processed	US$ 0.03 (Three Cents per barrel)
2.	Revision of Application	Per application	US$100

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Approved by		
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